

Legal English Test

Criminal Law Foundations Total 100 points

Name: _____

Student number: _____

Date: _____

Score / 100: _____

Instructions: Answer in English. Simple sentences are sufficient, but use the correct English legal terms. Read each question carefully.

Points: Section A 20 Section B 30 Section C 20 Section D 10 Section E 20

Section A Matching 20 points

Match each term with the correct definition. Write one letter for each term. Each answer is worth 2 points.

Terms	Definitions
1. Deterrence	A. The external element of an offence.
2. Rehabilitation	B. A failure to act where the law requires action.
3. Incapacitation	C. The view that serious immorality may itself justify criminal prohibition.
4. Retribution	D. Preventing crime by making people fear punishment.
5. Restorative justice	E. Reforming the offender and helping that person return to society.
6. Harm principle	F. Protecting society by restricting the offender's ability to commit further crimes.
7. Legal moralism	G. Imposing proportionate punishment because the offender deserves it.
8. Actus reus	H. Repairing harm through the participation of the victim, offender and community.
9. Mens rea	I. Criminalisation is justified primarily to prevent harm to other people.
10. Omission	J. The mental element of an offence.

Answers: 1 ____ 2 ____ 3 ____ 4 ____ 5 ____ 6 ____ 7 ____ 8 ____ 9 ____ 10 ____

Section B Multiple Choice 30 points

Choose the best answer and circle A, B, C or D. Each question is worth 3 points.

1. Which statement best describes the actus reus?

- A. It is always a harmful result.
- B. It is the external element, which may include conduct, circumstances or consequences.
- C. It is the reason why Parliament created the offence.
- D. It is the punishment imposed by the court.

2. When can a failure to act normally form the actus reus?

- A. Whenever helping would have been morally good.
- B. Only when the defendant intended death.
- C. When the defendant was under a legal duty to act.
- D. Only when a written contract existed.

3. Which situation is a recognised source of a duty to act?

- A. A parent has responsibility for a young child.
- B. A stranger dislikes another person.
- C. A person witnesses any accident.
- D. A person knows the victim's name.

4. Which question expresses the but-for test?

- A. Was the defendant morally wrong?
- B. But for the defendant's conduct, would the result have occurred?
- C. Did the defendant confess?
- D. Was the punishment proportionate?

5. Legal causation normally requires the defendant's conduct to be:

- A. the only cause of the result.
- B. the first event in time.
- C. an operating and substantial cause of the result.
- D. more serious than the victim's conduct.

6. What does the thin-skull rule mean?

- A. A vulnerable victim receives less protection.
- B. The defendant must take the victim as found.
- C. Medical treatment always breaks the chain of causation.
- D. Only physical vulnerabilities are relevant.

7. Direct intention exists when the prohibited result is:

- A. the defendant's aim or purpose.
- B. completely unforeseeable.
- C. caused only by another person.
- D. merely morally unacceptable.

8. Recklessness usually means that the defendant:

- A. made an innocent mistake without seeing a risk.
- B. saw a risk and unreasonably went on to take it.
- C. desired every possible consequence.
- D. failed to understand the law.

9. What is the coincidence requirement?

- A. The actus reus and mens rea must generally exist at the same time.
- B. Two defendants must commit the crime together.
- C. Two witnesses must give the same evidence.
- D. The victim and defendant must know each other.

10. According to the harm principle, criminal punishment is primarily justified when conduct:

- A. is unpopular.
- B. is unusual.
- C. causes or risks harm to other people.
- D. is criticised by the majority.

Section C True or False 20 points

Circle True or False. Each question is worth 2 points.

1. Every failure to help another person is automatically a criminal omission. True / False
2. A contractual obligation can create a legal duty to act. True / False
3. If factual causation is proved, legal causation is automatically proved as well. True / False
4. The victim's unusual physical vulnerability normally breaks the chain of causation. True / False
5. Imperfect medical treatment always breaks the chain of causation. True / False
6. Actus reus means the guilty mind. True / False
7. Intention and recklessness are forms of mens rea. True / False
8. Deterrence aims to prevent future crime. True / False
9. The harm principle and legal moralism are identical theories. True / False
10. Actus reus and mens rea must generally coincide. True / False

Section D Complete the Sentences 10 points

Use each expression from the word bank once. Each answer is worth 1 point.

Word bank: actus reus | mens rea | intention | recklessness | duty | but for | substantial | omission | harm | rehabilitation

1. The external element of a crime is called _____.
2. The mental element of a crime is called _____.
3. When a prohibited result is the defendant's aim, this is _____.
4. Conscious and unjustified risk-taking may amount to _____.
5. Criminal liability for failing to act normally requires a legal _____.
6. Factual causation is commonly tested by asking “_____ would the result have occurred?”
7. For legal causation, the defendant's conduct must remain an operating and _____ cause.
8. A failure to perform a legally required act is an _____.
9. John Stuart Mill's principle focuses on preventing _____ to others.
10. Reforming the offender is the aim of _____.

Section E Short Legal Problems 20 points

Identify the relevant legal principle and apply it to the facts. Each case is worth 4 points. Short answers are sufficient.

Case 1 The involuntary movement

Alice is holding a glass. A sudden and completely involuntary muscle spasm moves her arm, and the glass hits Ben.

Does Alice have a voluntary act for the purpose of actus reus? Explain briefly.

Case 2 The parent who does nothing

A father deliberately gives no food to his young child, although food is available and he is able to feed the child.

Can his failure to act form the actus reus of an offence? Explain briefly.

Case 3 The poison and the heart attack

Carla puts poison into Daniel's drink intending to kill him. Before the poison can take effect, Daniel dies from an unrelated heart attack.

Did Carla factually cause Daniel's death? Mention any other possible criminal liability.

Case 4 The wound and the hospital

Eva seriously stabs Frank. At the hospital, the treatment is imperfect, but the original wound remains an operating and substantial cause of Frank's death.

Has the medical treatment broken the chain of causation? Explain briefly.

Case 5 The obvious fire risk

Greg sees a clear risk that his bonfire may spread to a neighbour's shed. He continues anyway, and the shed burns down.

Which form of mens rea is most relevant? Explain briefly.

End of test Check that you have answered every question.